Title pending

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ACM Reference Format:
Edgar Jose Donoso Mansilla. 2026. Title pending. In . ACM, New York, NY, USA, 4 pages. https://doi.org/10.1145/nnnnnnn.nnnnnnn

1 Introduction

The power to analyze relationships between large amounts of data has never been as accessible as it has been with the development of machine learning algorithms. However, there is only so much data in the world so companies that want to push what their products can do rely on large unmonitored sets of data. This can cause algorithms to be biased towards minority groups. This issue exponentiates when the usage of this technology now stretches from healthcare, recruitment, law enforcement and more. This essay will attempt to focus on salient issues brought up by the 2020 documentary "Coded Bias".

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Conference'17, Washington, DC, USA
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ACM ISBN 978-x-xxxx-xxxx-x/YYYY/MM
https://doi.org/10.1145/nnnnnnn.nnnnnnn

2 Background information

The machine learning market has been developing rapidly since 2020, with the market value being projected to be around 282 billion dollars in size. Because of this rapid development, there is a larger focus on the usage of these models and the harm they can cause.

In 2020, the documentary, "Coded Bias" was released on Netflix. This documentary focuses on the research of MIT media researcher Joy Buolamwini. Her research focuses on the data collection issue plaguing machine learning models' ability to not discriminate. This research started because facial recognition algorithms were found to have significant difficulties in identifying faces of people of color and women. (DOCUMENTARY SOURCE HERE)

The documentary not only covers Buolamwini's research but also the impacts of machine learning models. One notorious example is the group Big Brother Watch in the UK which studies how the biased facial recognition systems trigger law enforcement systems with false positives and cause major stress for individuals. (BIG BROTHER WATCH SOURCE HERE)

Lastly, the documentary explores how there could be possible improvements for both the algorithms and the structures that produce the models. There is a heavy emphasis on the lack of active regulation and how the law needs to keep up with the technology being developed to prevent further issues from arising. (SOURCE HERE)

2.1 Stakeholders

There are several stakeholders in this scenario with a major power imbalance between the machine learning companies and the general public:

- Machine Learning Companies: As they decide what gets made and how it is made
- Machine Learning Engineers: As they implement the algorithms and methods of training
- Governments: As they regulate and use the algorithms for various purposes
- Software companies: As they use the algorithms to enhance their businesses
- General public: As they are the ones who are being judged by the algorithm

This power imbalance places the general public at a major disadvantage as machine learning algorithms rely on pre-existing data which is not guaranteed to be sanitized of biases. Therefore causing unjust profiling of individuals, rejections in jobs because of nationality/ethnicity, and more without any form of control as the mathematical models are a black box and companies have no incentive to reverse-engineer it.

3 Salient Issues

The documentary's main argument is that in computer systems that rely on machine learning are not accounted for in the USA's legal system at a reasonable pace. Therefore allowing companies to neglect the possible biases that the algorithms might have. This can and has been causing violations of human rights as different industries adopt this technology to handle decision-making. (BIG BROTHER WATCH SOURCE HERE and maybe other sources)

Since the original studies and the documentary, the usage of machine learning has increased across all industries (INSERT SOURCE HERE). This in turn further pushes the need for boundaries in the development, training and usage of said models by major entities like multi-national companies and governments across the world. In this essay, there will be an attempt to apply ethical frameworks to evaluate the following questions:

- What moral duties do ML companies have when producing their models?
- Who would be acting unethically for not taking responsibility when the models cause damage?
- Is it ethically feasible to enforce regulations in the black box that are ML model?

4 Technological Background

To be able to evaluate the biases of machine learning models, the production of said models must first be understood to derive the links between the stakeholders and the impacts of the algorithms.

4.1 Machine Learning Types

Machine learning is a subset of artificial intelligence that uses statistical inference to adapt responses based on previous and new knowledge. This is a very powerful type of program as it provides adaptability at no code architecture change, however, these systems improve drastically the more data they have available and have analyzed. To achieve this functionality a ML model must first be trained. There are 5 key types of training that can be done on a model [China NA]:

4.1.1 Supervised Learning. This type of training is done with a set of labelled data so the model can build a relationship between the provided labels and the data. This type of algorithm is heavily used in image recognition, risk assessment and fraud detection.

4.1.2 Unsupervised Learning. Unlike the previous method, this method tries to find unique labels to learn around. This is used in predictive modelling and pattern recognition.

4.1.3 Self-supervised Learning. Like unsupervised learning, this method doesn't require the labels. The main feature of this method is that it will learn the input from elsewhere and turn unsupervised problems to supervised problems by generating

labels. This is common in computer vision and natural language processing.

4.1.4 Reinforcement Learning. This method is unlike the previous ones where there is a data set, in this method the response of the algorithm's output is rated as good or bad and through iteration it will approach the desired behaviour. This method is mainly used to train robots and game behaviours.

4.1.5 Semi-supervised Learning. This method is a mix of the 2 first methods. It is commonly used in most contexts to find relationships not labelled at the beginning of training.

4.2 Data Collection and Cleaning

The process of data collection is a key process in the development of any model, it is the core of the algorithm's ability to adapt. Therefore the data collection pipeline is complex to reduce undesired errors. The pipeline is complex and composed of many phases [Vidhya et al. Jun].

4.2.1 Data Collection. This processes involve obtaining and labelling the data. They have the main limitation of cost, providing human made labels for models is expensive. There are also issues with ensuring that the data sources are of quality and large volume which is what data acquisition and discovery do. This part of the development of models is essential to ensure the model is trained on data which is not poisoned or biased.

4.2.2 Data Cleaning. After the data is trained, the data needs to be analyzed for possible errors. This is the stage where the data can be validated through humans and other algorithms to ensure that the data provides results which are not noisy. This is a key part of ensuring that a model can be fair by checking the following:

- Majority groups are over-represented
- Data for minority groups is poisoned

4.2.3 Fairness Training. To solve this Distributional Robust Training is done which is an iterative process where the weights are adjusted to converge at impartiality. There is also FR training which is a comparison process with a clean model and a trained model which is meant to protect and also remove the biases of the model without sacrificing the accuracy.

4.3 Facial Recognition

5 Ethical Analysis

5.1 Responsibilities of ML companies

5.1.1 Kantianism.

5.1.2 Act Utilitarianism.

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5.2.1 Social Contract Theory.

5.2.2 Act Utilitarianism.

5.3 Ethical feasibility of creating regulations

6 Beyond the superficial

A lot of DigiPen graduates tend to go out into the world and work in embedded or real-time systems that rely on ML to produce the adequate output, be it a sensor for a car, or a self-control algorithm for a plane. It is very important to understand how the usage of ML can bias the algorithms in ways we can't control as the models are trained beyond our reach.

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